

INTERNAL REVENUE BULLETIN



HIGHLIGHTS OF THIS ISSUE

These synopses are intended only as aids to the reader in identifying the subject matter covered. They may not be relied upon as authoritative interpretations.

EMPLOYEE PLANS

Notice 2026-33, page 1572.

This notice provides guidance with respect to section 334 of Division T of the Consolidated Appropriations Act, 2023, Pub. L. 117-328, 136 Stat. 3559 (2022), known as the SECURE 2.0 Act of 2022 (SECURE 2.0 Act), enacted on December 29, 2022. Section 334 of the SECURE 2.0 Act generally added section 6050Z to the Code and amended sections 72(t) and 401(a)(39) to permit defined contribution plans to make qualified long-term care distributions to be used for the purchase of certified long-term care insurance for a participant and the participant's spouse if certain conditions are satisfied. Section 334 of the SECURE 2.0 Act is effective for

distributions made after December 29, 2025. This notice provides guidance to issuers of long-term care insurance on the disclosure and reporting requirements under sections 401(a)(39) and 6050Z of the Code. The notice also provides guidance to plan administrators making and individuals receiving qualified long-term care distributions.

INCOME TAX

Rev. Rul. 2026-11, page 1570.

Federal rates; adjusted federal rates; adjusted federal long-term rate, and the long-term tax exempt rate. For purposes of sections 382, 1274, 1288, 7872 and other sections of the Code, tables set forth the rates for June 2026.

The IRS Mission

Provide America's taxpayers top-quality service by helping them understand and meet their tax responsibilities and enforce the law with integrity and fairness to all.

Introduction

The Internal Revenue Bulletin is the authoritative instrument of the Commissioner of Internal Revenue for announcing official rulings and procedures of the Internal Revenue Service and for publishing Treasury Decisions, Executive Orders, Tax Conventions, legislation, court decisions, and other items of general interest. It is published weekly.

It is the policy of the Service to publish in the Bulletin all substantive rulings necessary to promote a uniform application of the tax laws, including all rulings that supersede, revoke, modify, or amend any of those previously published in the Bulletin. All published rulings apply retroactively unless otherwise indicated. Procedures relating solely to matters of internal management are not published; however, statements of internal practices and procedures that affect the rights and duties of taxpayers are published.

Revenue rulings represent the conclusions of the Service on the application of the law to the pivotal facts stated in the revenue ruling. In those based on positions taken in rulings to taxpayers or technical advice to Service field offices, identifying details and information of a confidential nature are deleted to prevent unwarranted invasions of privacy and to comply with statutory requirements.

Rulings and procedures reported in the Bulletin do not have the force and effect of Treasury Department Regulations, but they may be used as precedents. Unpublished rulings will not be relied on, used, or cited as precedents by Service personnel in the disposition of other cases. In applying published rulings and procedures, the effect of subsequent legislation, regulations, court decisions, rulings, and procedures must be considered, and Service personnel and others concerned are cautioned

against reaching the same conclusions in other cases unless the facts and circumstances are substantially the same.

The Bulletin is divided into four parts as follows:

Part I.—1986 Code.

This part includes rulings and decisions based on provisions of the Internal Revenue Code of 1986.

Part II.—Treaties and Tax Legislation.

This part is divided into two subparts as follows: Subpart A, Tax Conventions and Other Related Items, and Subpart B, Legislation and Related Committee Reports.

Part III.—Administrative, Procedural, and Miscellaneous.

To the extent practicable, pertinent cross references to these subjects are contained in the other Parts and Subparts. Also included in this part are Bank Secrecy Act Administrative Rulings. Bank Secrecy Act Administrative Rulings are issued by the Department of the Treasury's Office of the Assistant Secretary (Enforcement).

Part IV.—Items of General Interest.

This part includes notices of proposed rulemakings, disbarment and suspension lists, and announcements.

The last Bulletin for each month includes a cumulative index for the matters published during the preceding months. These monthly indexes are cumulated on a semiannual basis, and are published in the last Bulletin of each semiannual period.

The contents of this publication are not copyrighted and may be reprinted freely. A citation of the Internal Revenue Bulletin as the source would be appropriate.

Part I

Section 1274.— Determination of Issue Price in the Case of Certain Debt Instruments Issued for Property

(Also Sections 42, 280G, 382, 467, 468, 482, 483,
1288, 7520, 7702, 7872.)

Rev. Rul. 2026-11

This revenue ruling provides various prescribed rates for federal income

tax purposes for June 2026 (the current month). Table 1 contains the short-term, mid-term, and long-term applicable federal rates (AFR) for the current month for purposes of section 1274(d) of the Internal Revenue Code. Table 2 contains the short-term, mid-term, and long-term adjusted applicable federal rates (adjusted AFR) for the current month for purposes of section 1288(b). Table 3 sets forth the adjusted federal long-term rate and the long-term tax-exempt rate described in section 382(f). Table 4 contains the appropri-

ate percentages for determining the low-income housing credit described in section 42(b)(1) for buildings placed in service during the current month. However, under section 42(b)(2), the applicable percentage for non-federally subsidized new buildings placed in service after July 30, 2008, shall not be less than 9%. Finally, Table 5 contains the federal rate for determining the present value of an annuity, an interest for life or for a term of years, or a remainder or a reversionary interest for purposes of section 7520.

REV. RUL. 2026-11 TABLE 1
Applicable Federal Rates (AFR) for June 2026
Period for Compounding

	<i>Annual</i>	<i>Semiannual</i>	<i>Quarterly</i>	<i>Monthly</i>
		<i>Short-term</i>		
AFR	3.85%	3.81%	3.79%	3.78%
110% AFR	4.23%	4.19%	4.17%	4.15%
120% AFR	4.62%	4.57%	4.54%	4.53%
130% AFR	5.01%	4.95%	4.92%	4.90%
		<i>Mid-term</i>		
AFR	4.13%	4.09%	4.07%	4.06%
110% AFR	4.55%	4.50%	4.47%	4.46%
120% AFR	4.97%	4.91%	4.88%	4.86%
130% AFR	5.39%	5.32%	5.29%	5.26%
150% AFR	6.23%	6.14%	6.09%	6.06%
175% AFR	7.29%	7.16%	7.10%	7.06%
		<i>Long-term</i>		
AFR	4.87%	4.81%	4.78%	4.76%
110% AFR	5.36%	5.29%	5.26%	5.23%
120% AFR	5.85%	5.77%	5.73%	5.70%
130% AFR	6.35%	6.25%	6.20%	6.17%

REV. RUL. 2026-11 TABLE 2
Adjusted AFR for June 2026
Period for Compounding

	<i>Annual</i>	<i>Semiannual</i>	<i>Quarterly</i>	<i>Monthly</i>
Short-term adjusted AFR	2.91%	2.89%	2.88%	2.87%
Mid-term adjusted AFR	3.13%	3.11%	3.10%	3.09%
Long-term adjusted AFR	3.68%	3.65%	3.63%	3.62%

REV. RUL. 2026-11 TABLE 3

Rates Under Section 382 for June 2026

Adjusted federal long-term rate for the current month	3.68%
Long-term tax-exempt rate for ownership changes during the current month (the highest of the adjusted federal long-term rates for the current month and the prior two months.)	3.68%

REV. RUL. 2026-11 TABLE 4

Appropriate Percentages Under Section 42(b)(1) for June 2026

Note: Under section 42(b)(2), the applicable percentage for non-federally subsidized new buildings placed in service after July 30, 2008, shall not be less than 9%.

Appropriate percentage for the 70% present value low-income housing credit	8.05%
Appropriate percentage for the 30% present value low-income housing credit	3.45%

REV. RUL. 2026-11 TABLE 5

Rate Under Section 7520 for June 2026

Applicable federal rate for determining the present value of an annuity, an interest for life or a term of years, or a remainder or reversionary interest	5.00%
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Section 42.—Low-Income Housing Credit

The applicable federal short-term, mid-term, and long-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 467.—Certain Payments for the Use of Property or Services

The applicable federal short-term, mid-term, and long-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 483.—Interest on Certain Deferred Payments

The applicable federal short-term, mid-term, and long-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 280G.—Golden Parachute Payments

The applicable federal short-term, mid-term, and long-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 468.—Special Rules for Mining and Solid Waste Reclamation and Closing Costs

The applicable federal short-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 1288.—Treatment of Original Issue Discount on Tax-Exempt Obligations

The adjusted applicable federal short-term, mid-term, and long-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 382.—Limitation on Net Operating Loss Carryforwards and Certain Built-In Losses Following Ownership Change

The adjusted applicable federal long-term rate is set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 482.—Allocation of Income and Deductions Among Taxpayers

The applicable federal short-term, mid-term, and long-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 7520.—Valuation Tables

The applicable federal mid-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Section 7872.—Treatment of Loans With Below-Market Interest Rates

The applicable federal short-term, mid-term, and long-term rates are set forth for the month of June 2026. See Rev. Rul. 2026-11, page 1570.

Part III

Guidance on Qualified Long-Term Care Distributions

Notice 2026-33

I. PURPOSE

This notice provides guidance on qualified long-term care distributions, as permitted under section 401(a)(39) of the Internal Revenue Code (Code). In particular, the notice provides guidance to providers of certified long-term care insurance (issuers) relating to the disclosure and reporting requirements under sections 401(a)(39) and 6050Z. In addition, the notice provides guidance under sections 72(t)(2)(N) and 401(a)(39) to plan administrators making and individuals receiving qualified long-term care distributions, including setting forth safe harbors for plan administrators in making qualified long-term care distributions. This notice also extends the deadline for a plan sponsor of a defined contribution plan that is not a governmental plan (within the meaning of section 414(d)), a section 403(b) plan maintained by a public school, or an applicable collectively bargained plan, to amend its eligible retirement plan to permit qualified long-term care distributions.

II. BACKGROUND

On December 29, 2022, Division T of the Consolidated Appropriations Act, 2023, Public Law 117-328, 136 Stat. 4459 (2022), known as the SECURE 2.0 Act of 2022 (SECURE 2.0 Act), was enacted. Section 334 of the SECURE 2.0 Act amended sections 72(t) and 401(a) (among

other provisions) to permit defined contribution plans to make qualified long-term care distributions and added section 6050Z to the Code to provide related reporting requirements. Section 334 of the SECURE 2.0 Act is effective for distributions made after December 29, 2025.

1. Section 401(a)(39) of the Code

Section 334(a) of the SECURE 2.0 Act amended section 401(a) of the Code to add section 401(a)(39). Section 401(a)(39)(A) provides that a trust forming part of a qualified defined contribution plan will not be treated as failing to constitute a qualified trust under section 401(a) solely because the plan permits qualified long-term care distributions.

Section 401(a)(39)(B) defines the term “qualified long-term care distribution” as so much of the distributions made during the taxable year as does not exceed, in the aggregate, the least of the following: the amount paid by or assessed to the employee during the taxable year for, or with respect to, certified long-term care insurance for the employee or the employee’s spouse;¹ an amount equal to 10% of the present value of the vested accrued benefit of the employee under the plan; or \$2,600, as adjusted for inflation for 2026 (see section 401(a)(39)(B)(ii)).²

Section 401(a)(39)(C) defines the term “certified long-term care insurance” as a qualified long-term care insurance contract (as defined in section 7702B(b)) covering qualified long-term care services (as defined in section 7702B(c)); coverage of the risk that an insured individual would become a chronically ill individual (within the meaning of section 101(g)(4)(B)) under a rider or other provision of a life insurance contract that satisfies the

requirements of section 101(g)(3);³ or coverage of qualified long-term care services under a rider or other provision of an insurance or annuity contract that is treated as a separate contract under section 7702B(e) and satisfies the requirements of section 7702B(g). For any one of these options, section 401(a)(39)(C) further provides that the coverage must provide “meaningful financial assistance” in the event the insured needs home-based or nursing home care.⁴

Section 401(a)(39)(D) provides that rules similar to the rules of section 402(l)(3) will apply for purposes of section 401(a)(39). Section 402(l)(3) provides that an amount will be treated as a distribution for purposes of section 402(l)(1) only to the extent that the amount would be includible in gross income without regard to section 402(l)(1).⁵

Section 401(a)(39)(E)(i) provides that no distribution will be treated as a qualified long-term care distribution unless a long-term care premium statement with respect to the employee has been filed with the plan. Section 401(a)(39)(E)(ii) defines a long-term care premium statement as a statement provided by the issuer of long-term care coverage, upon request of the coverage owner, that contains certain specified information, such as the identities of the issuer and the employee owning the coverage, as well as such other information as the Secretary may require. Section 401(a)(39)(E)(iii) requires that, in order for a long-term care premium statement to be accepted by a plan, the issuer must complete a disclosure to the Secretary for the specific coverage product to which the long-term care premium statement relates (Issuer Disclosure). The Issuer Disclosure must identify the issuer, the type of coverage, and any other infor-

¹ By regulation, the Secretary can permit other family members of the employee to be eligible for coverage of certified long-term care insurance.

² Section 401(a)(39)(B)(ii) provides that, in the case of taxable years beginning after December 31, 2024, the \$2,500 amount will be increased by an amount equal to \$2,500, multiplied by the cost-of-living adjustment determined under section 1(f)(3) for the calendar year in which the taxable year begins, determined by substituting “calendar year 2023” for “calendar year 2016” in section 1(f)(3)(A)(ii). If any increase is not a multiple of \$100, the amount will be rounded to the nearest multiple of \$100.

³ When determining the requirements of section 101(g)(3), section 401(a)(39)(C)(ii) provides that section 101(g)(3)(D) (relating to the limitation on the exclusion of periodic payments) does not apply.

⁴ Section 401(a)(39)(C) states that coverage does not provide meaningful financial assistance unless benefits are adjusted for inflation and consumer protections are provided, including protection in the event the coverage is terminated.

⁵ Section 402(l)(1) generally provides a limited exclusion from gross income for distributions from an eligible employer plan that is a governmental plan (as defined in § 414(d)) that are paid directly to an accident or health plan or a qualified long-term care insurance contract for health or long-term care insurance premiums of an eligible retired public safety officer, his or her spouse, or his or her dependents.

mation as the Secretary may require that is included in the filing of the coverage product with the applicable State authority.

Section 334(b) of the SECURE 2.0 Act made several conforming amendments to the Code to apply the rules in section 401(a)(39) to other types of defined contribution plans. As amended, section 403(a)(6) provides that an annuity contract will not fail to be subject to section 403(a) solely by reason of allowing distributions to which section 401(a)(39) applies. Qualified long-term care distributions are also treated as permitted distributions under amended sections 401(k)(2)(B)(i)(VII), 403(a)(6), 403(b)(7)(A)(i)(VII), 403(b)(11)(E), and 457(d)(1)(A)(v).

2. Exception to the 10% Additional Tax under Section 72(t)(2)(N)

Section 72(t)(1) generally imposes a 10% additional tax on a distribution from a qualified retirement plan⁶ unless the distribution qualifies for one of the exceptions to the 10% additional tax listed in section 72(t)(2). Section 334(c) of the SECURE 2.0 Act added section 72(t)(2)(N), which generally provides that the 10% additional tax on early distributions does not apply to qualified long-term care distributions described in section 401(a)(39).⁷ Although the 10% additional tax does not apply, a qualified long-term care distribution is generally includible in gross income. Section 72(t)(2)(N)(iii) provides that qualified long-term care distributions are not treated as eligible rollover distributions for purposes of sections 401(a)(31), 402(f), and 3405.

3. Reporting Requirements under Section 6050Z

Section 334(d) of the SECURE 2.0 Act added section 6050Z, which contains reporting requirements relating to qualified long-term care distributions. Sec-

tion 6050Z(a) provides that any issuer of certified long-term care insurance that provides a long-term care premium statement with respect to any purchaser pursuant to section 401(a)(39)(E) for a calendar year must make a return according to forms or regulations prescribed by the Secretary. The return must be made no later than February 1 of the succeeding calendar year and set forth the following with respect to each purchaser:

- Name and taxpayer identification number of the issuer,
- Statement that the coverage is for certified long-term care insurance (as defined in section 401(a)(39)(C)),
- Name of the owner of the coverage,
- Identification of the individual covered and the individual's relationship to the owner,
- Premiums paid for the coverage for the calendar year, and
- Any other information that the Secretary may require.

Section 6050Z(b) provides that the issuer required to make a return under section 6050Z(a) must furnish a written statement to each individual whose name is required to be set forth on the return in section 6050Z(a). The written statement must be provided to the individual or individuals on or before January 31 of the year following the calendar year for which the return in section 6050Z(a) was required to be made. The written statement must include the name, address, and phone number of the issuer of the contract or coverage, and the aggregate amount of premiums and charges paid under the contract or coverage covering the insured individual during the calendar year.

Section 6050Z(c) provides that, in the case of contracts or coverage covering more than one insured, the return and statement required by section 6050Z(a) and (b) should identify only the portion of the premium that is properly allocable to the insured in respect of whom the return or the statement is made.

Section 6050Z(d) provides that, if any individual to whom a return is required to be furnished under section 6050Z(b) requests that such a return be furnished at any time before the close of the calendar year, the person required to make the return under section 6050Z(b) (that is, the issuer of the certified long-term care insurance) must comply with the request and must furnish to the Secretary at such time a copy of the return so provided.

III. GUIDANCE ON SECTION 334 OF THE SECURE 2.0 ACT RELATING TO QUALIFIED LONG-TERM CARE DISTRIBUTIONS

Questions and Answers Relating to Issuers of Certified Long-Term Care Insurance

Issuer Disclosure

Q. A-1: What must be included in the disclosure to the Secretary, as required in section 401(a)(39)(E)(iii)?

A. A-1: Section 401(a)(39)(E)(iii) provides that a long-term care premium statement will be accepted only if an Issuer Disclosure has been filed with the Secretary for the specific coverage product to which the statement relates. For purposes of this notice, the Issuer Disclosure must be filed with the IRS.⁸ The Issuer Disclosure must identify the issuer, type of coverage, and such other information as the Secretary may require that is included in the filing of the product with the applicable State authority.

The Department of the Treasury (Treasury Department) and the Internal Revenue Service (IRS) recognize that there should be a balance between providing adequate disclosure to satisfy the applicable reporting requirement and minimizing the burdens for issuers that must file an Issuer Disclosure, especially since long-term care insurance generally is

⁶For purposes of section 72(t), the term "qualified retirement plan," as defined in section 4974(c), means a plan described in section 401(a) that includes a trust exempt from tax under section 501(a), an annuity plan described in section 403(a), an annuity contract described in section 403(b), an individual retirement account described in section 408(a), or an individual retirement annuity described in section 408(b). Note that an IRA, which includes an individual retirement account described in section 408(a) and an individual retirement annuity described in section 408(b), is not a plan eligible to make qualified long-term care distributions under section 401(a)(39).

⁷If a qualified long-term care distribution relates to coverage for a spouse, and the employee and the employee's spouse file separate returns, the exception to the 10% additional tax under section 72(t)(2)(N) does not apply. See section 72(t)(2)(N)(ii).

⁸Section 7701(a)(11)(B) provides that the term "Secretary" means the Secretary of the Treasury or his delegate. Section 7701(a)(12)(A)(i) defines delegate to include any agency of the Treasury Department, which includes the IRS.

highly regulated by States. To satisfy the requirements of section 401(a)(39)(E)(iii), an issuer must submit an Issuer Disclosure to the IRS, for each type of coverage. (in accordance with the submission procedures described in Q&A A-2 of this notice).

The Issuer Disclosure must include the following information:

1. Contact information for the issuer, including the name, address, and taxpayer identification number. The issuer's contact information must also include the name and telephone number of a person to contact at the issuer.

2. A general description of the type of long-term care coverage provided.

3. A statement that the coverage offered is certified long-term care insurance (as defined in section 401(a)(39)(C)).

4. A statement that the coverage offered has been filed with and approved by a State regulatory authority, including the identity of the State regulatory authority that approved the coverage.

5. The following penalties of perjury declaration that is signed by the issuer: **"Under penalties of perjury, I declare that I have examined this disclosure to the IRS, and, to the best of my knowledge and belief, the facts presented in this disclosure are true, correct, and complete."**

Additional information on the content requirements for the Issuer Disclosure, including any future updates to the content requirements, will be posted on the IRS.gov website at <https://www.irs.gov/retirement-plans-issuer-disclosures-certified-long-term-care-insurance>.

Q. A-2: What are the procedures to submit an Issuer Disclosure to the IRS?

A. A-2: To satisfy the disclosure requirement in section 401(a)(39)(E)(iii), the issuer must submit an Issuer Disclosure that satisfies the requirements in Q&A A-1 of this notice to the IRS at the following fax number: (855) 224-1311 (toll-free number). On the cover sheet, please include the following language, "Issuer Disclosure to satisfy the reporting requirement in Code section 401(a)(39)(E)(iii)."

Once an Issuer Disclosure is received at the IRS, it will be reviewed for its completeness. If information is missing, the IRS will communicate by letter with the

issuer's contact person listed in the Issuer Disclosure to obtain the missing information. The issuer will have 21 calendar days from the date of this letter to provide the requested information. If the Issuer Disclosure is complete, the IRS will send the issuer an acknowledgment letter indicating that the Issuer Disclosure satisfied the requirements in section 401(a)(39)(E)(iii). The issuer should retain the letter acknowledging the IRS's receipt of the Issuer Disclosure for its records. After receiving the acknowledgment letter, the issuer is then permitted to file a long-term care premium statement with a plan administrator of a defined contribution plan upon the request of a participant in the defined contribution plan. If there are any changes to the information required to be provided in the Issuer Disclosure, as described in Q&A-1 of this notice, the issuer must file an updated Issuer Disclosure with the IRS, following the procedures in this Q&A-2.

Additional information on the procedures for submitting an Issuer Disclosure to the IRS, including any future updates to the Issuer Disclosure procedures, will be posted on the IRS.gov website at <https://www.irs.gov/retirement-plans/issuer-disclosures-certified-long-term-care-insurance>.

Q. A-3: When must an issuer submit an Issuer Disclosure to the IRS?

A. A-3: There is no general deadline for submitting an Issuer Disclosure to the IRS. However, an issuer must submit an Issuer Disclosure to the IRS and receive an acknowledgment letter before the issuer can file a long-term care premium statement with a defined contribution plan.

Long-Term Care Premium Statement

Q. A-4: What is a "long-term care premium statement"?

A. A-4: A "long-term care premium statement" is a statement provided by an issuer to a defined contribution plan at the request of the owner of the coverage. Section 401(a)(39)(E)(i) provides that no distribution from a plan will be treated as a qualified long-term care distribution unless a long-term care premium statement with respect to the employee has been filed with the plan. The owner of the coverage will request, on a calendar year basis, that the issuer send a long-term care

premium statement to the defined contribution plan.

Section 401(a)(39)(E)(ii) sets forth the information to be included in the long-term care premium statement. In addition to certain specified information, section 401(a)(39)(E)(ii)(VI) provides that a long-term care premium statement should also include any other information as the Secretary may require.

Q. A-5: What must an issuer include in a long-term care premium statement that will be filed with a defined contribution plan?

A. A-5: In order to satisfy the requirements in section 401(a)(39)(E)(ii), a long-term care premium statement must include the following information:

1. Name and taxpayer identification number of the issuer.

2. Statement that the coverage is certified long-term care insurance (as defined in section 401(a)(39)(C)).

3. Identification of the employee as the owner of the coverage.

4. Identification of the individual covered and the individual's relationship to the employee.

5. Premiums owed for the coverage for the calendar year.

6. Pursuant to section 401(a)(39)(E)(ii)(VI), a statement that the issuer has satisfied the Issuer Disclosure requirement in section 401(a)(39)(E)(iii) and Q&As A-1 through A-3 of this notice (including any updates posted on the IRS.gov website at <https://www.irs.gov/retirement-plans-issuer-disclosures-certified-long-term-care-insurance>).

Q. A-6: Where should an issuer file a long-term care premium statement?

A. A-6: If an employee requests from an issuer a long-term care premium statement for the purpose of obtaining a qualified long-term care distribution, the issuer will file the long-term care premium statement with the applicable defined contribution plan identified by the employee. An issuer may ask the employee for various information needed to provide the statement, including the name and current mailing address of the applicable defined contribution plan, the name and contact information of the plan administrator, whether the applicable defined contribution plan offers qualified long-term care distributions as a distribution option, the

employee's name and contact information, and, if the employee is not the covered individual, the name of the covered individual and his or her relationship to the employee. An issuer is permitted to rely on such information provided by the employee.

Return & Reporting - Form 1099-LPS

Q. A-7: Are issuers of long-term care premiums statements required to report premiums paid to the IRS?

A. A-7: Yes. Pursuant to section 6050Z(a), any issuer of certified long-term care insurance that files a long-term care premium statement with an applicable defined contribution plan for a calendar year must make a return to the IRS using Form 1099-LPS, *Long-Term Care Premiums Paid Statement*, on which the issuer will report the long-term care premiums paid for the calendar year. Form 1099-LPS must be filed with the IRS no later than February 1 of the calendar year following the calendar year the long-term care premium statement was filed with the plan. For example, in May 2027, Issuer A files a qualified long-term care premium statement with Employee C's section 401(k) plan. Issuer A is required to file Form 1099-LPS with the IRS no later than February 1, 2028.

Q. A-8: Are issuers of long-term care premium statements required to do any other reporting under section 6050Z?

A. A-8: Yes. Pursuant to section 6050Z(b), an issuer that is required to make a return under section 6050Z(a) must also furnish a written statement to each individual whose name is required to be set forth on the Form 1099-LPS. Thus, the issuer will be required to furnish a written statement to the employee (and another written statement to the insured if the insured is not the employee).

The written statement must be provided to the individual (or individuals) on or before January 31 of the year in which the Form 1099-LPS is required to be filed with the IRS. Using the same facts in the example in Q&A A-7 of this notice, in May 2027, Issuer A files a long-term care

premium statement with Employee C's section 401(k) plan. Issuer A filed Form 1099-LPS with the IRS no later than February 1, 2028. Employee C was listed on that Form 1099-LPS. Thus, Issuer A will need to send Copy B of the Form 1099-LPS to Employee C no later than January 31, 2028.

Q. A-9: What are the special reporting rules that apply in the case of contracts or coverage covering more than one insured?

A. A-9: In the case of contracts or coverage covering more than one insured, each return required by section 6050Z(a) (that is, Form 1099-LPS) and each statement required by section 6050Z(b) should identify only the portion of the premium that is properly allocable to the insured.

Q. A-10: How can an issuer satisfy the reporting requirement in section 6050Z(d)?

A. A-10: Section 6050Z(d) provides that, if any individual to whom a return is required to be furnished under section 6050Z(b) requests that such a return be furnished at any time before the close of the calendar year, the person required to make the return under section 6050Z(b) must comply with such request and must furnish to the Secretary at such time a copy of the return so provided.

Except as provided in Q&A A-11 of this notice, if an individual requests a Form 1099-LPS before the close of the calendar year, then, to comply with the requirements in this Q&A A-10 and section 6050Z(d), the issuer must furnish the Form 1099-LPS to the individual within a reasonable period of time after the request is made. At the same time, the issuer must also furnish to the IRS a copy of the Form 1099-LPS provided to the individual. However, the issuer will still be required to satisfy the reporting requirements in section 6050Z(a) and (b) for the calendar year for which the return is required to be made.

Q. A-11: In lieu of satisfying the reporting requirements in Q&A A-10 of this notice, is there an alternative way an issuer can satisfy the reporting requirements in section 6050Z(d)?

A. A-11: Yes. Notwithstanding Q&A A-10 of this notice, if an issuer sat-

isfies the requirements in this Q&A A-11, the issuer will be treated as satisfying the requirements in section 6050Z(d). An issuer will satisfy the requirements of this Q&A A-11 if the issuer provides the individual requesting a return before the close of the calendar year with the name, address, and phone number of the contact person for the issuer of the contract or coverage, as well as providing the aggregate amount of premiums and charges paid under the contract covering the insured as of the date of the request. This information can be provided to the individual either on an updated copy of the long-term care premium statement or another statement from the issuer, such as an account statement or a bill. If the issuer satisfies the requirements in this Q&A A-11, the issuer will be treated as providing both the individual and the IRS the return required in section 6050Z(d). However, the issuer will still be required to satisfy the reporting requirements in section 6050Z(a) and (b) for the calendar year for which the return is required to be made.

Questions and Answers Relating to Plan Administrators Making and Individuals Receiving Qualified Long-Term Care Distributions

Q. B-1: Is a defined contribution plan required to permit qualified long-term care distributions under section 401(a)(39)?

A. B-1: No. It is optional for a defined contribution plan to permit qualified long-term care distributions pursuant to section 401(a)(39). Plan amendments adopted to permit qualified long-term care distributions are discretionary amendments for purposes of the plan amendment rules.

Q. B-2: What is the deadline for adopting plan amendments to permit qualified long-term care distributions?

A. B-2: The deadline to amend a defined contribution plan that is not a governmental plan, a section 403(b) plan maintained by a public school, or an applicable collectively bargained plan, to permit qualified long-term care distributions, is December 31, 2027.⁹ The deadline to amend a defined contribution plan that is

⁹Q&A J-1 of Notice 2024-02, 2024-2 IRB 316, sets forth the general deadlines for a plan sponsor to amend its eligible retirement plan for required and discretionary amendments to reflect the SECURE 2.0 Act. This notice extends the deadline for a plan sponsor of a defined contribution plan that is not a governmental plan, a section 403(b) plan maintained by a public school, or an applicable collectively bargained plan, to amend its plan to permit qualified long-term care distributions from December 31, 2026, to December 31, 2027. The deadlines to amend defined contribution plans that are applicable collectively bargained plans or governmental plans remain as provided in Notice 2024-02.

an applicable collectively bargained plan, to permit qualified long-term care distributions, is December 31, 2028. The deadline to amend a defined contribution plan that is a or governmental plan, to permit qualified long-term care distributions, is December 31, 2029.

Q. B-3: What is a qualified long-term care distribution?

A. B-3: A qualified long-term care distribution is a distribution made during the taxable year that does not exceed, in the aggregate, the *least* of any of the following:

1. The amount paid by or assessed to the employee during the taxable year for, or with respect to, certified long-term care insurance for the employee or the employee's spouse.

2. An amount equal to 10% of the present value of the vested accrued benefit of the employee under the plan.

3. \$2,600 (as adjusted for inflation for 2026).¹⁰

No distribution will be treated as a qualified long-term care distribution unless a long-term care premium statement with respect to the employee has been filed with the plan. The long-term care premium statement is considered supporting documentation for the employee's request for a qualified long-term care distribution.

Q. B-4: Do qualified long-term care distributions from a defined contribution plan satisfy the distribution requirements in sections 401(k)(2)(B)(i), 403(b)(7)(A)(i), 403(a)(6), 403(b)(11), and 457(d)(1)(A)?

A. B-4: Yes. Qualified long-term care distributions satisfy the distribution requirements for qualified cash or deferred arrangements under section 401(k)(2)(B)(i)(VII), annuity contracts under section 403(a)(6), custodial accounts under section 403(b)(7)(A)(i)(VII), annuity contracts under section 403(b)(11)(E), and eligible governmental deferred compensation plans under section 457(d)(1)(A)(v). Thus, for example, an employer may expand the distribution options under its section 401(k) plan to allow an amount attributable to elective, qualified nonelective, qualified matching, or safe harbor

contributions to be distributed as a qualified long-term care distribution.

Q. B-5: Does an individual have an extended 3-year repayment period to repay a qualified long-term care distribution to a retirement plan?

A. B-5: No. Unlike certain section 72(t) permitted distributions, which can be repaid within a 3-year period beginning on the day after the date on which the distribution was received,¹¹ neither section 72(t)(2)(N) nor section 401(a)(39) provides that an amount distributed pursuant to section 401(a)(39) may be repaid to a retirement plan within such a 3-year period. Thus, a qualified long-term care distribution is not eligible for extended 3-year repayment to a retirement plan.

Q. B-6: Is a qualified long-term care distribution treated as an eligible rollover distribution for purposes of the direct rollover rules, section 402(f) notice requirements, and the mandatory withholding rules?

A. B-6: No. A qualified long-term care distribution is not treated as an eligible rollover distribution for purposes of the direct rollover rules under section 401(a)(31), the notice requirement under section 402(f), and the mandatory withholding rules under section 3405. See generally section 72(t)(2)(N)(iii).

Thus, a defined contribution plan is not required to offer an individual a direct rollover with respect to a qualified long-term care distribution. In addition, a plan administrator is not required to provide a section 402(f) notice. Finally, the plan administrator or payor of the qualified long-term care distribution is not required to withhold an amount equal to 20% of the distribution, as generally is required under section 3405(c)(1). However, a qualified long-term care distribution is subject to the withholding requirements of section 3405(b) and § 35.3405-1T of the withholding tax regulations.

Q. B-7: Is the plan administrator of a defined contribution plan permitted to rely on an issuer's statement in the long-term care premium statement that an Issuer Disclosure satisfying the requirements of section 401(a)(39)(E)(iii) and Q&As A-1

through A-3 of this notice has been made to the IRS?

A. B-7: Yes. In determining whether an employee is eligible for a qualified long-term care distribution, the plan administrator of an applicable eligible retirement plan is permitted to rely on the issuer's statement in the long-term care premium statement that an Issuer Disclosure has been made to the IRS that satisfies the requirements of section 401(a)(39)(E)(iii) and Q&As A-1 through A-3 of this notice (including any updates posted on the IRS.gov website at <https://www.irs.gov/retirement-plans-issuer-disclosures-certified-long-term-care-insurance>).

Q. B-8: Is the plan administrator of a defined contribution plan permitted to rely on an issuer's statement in the long-term care premium statement that the insurance coverage is certified long-term care insurance, as defined in section 401(a)(39)(C)?

A. B-8: Yes. In determining whether an employee is eligible for a qualified long-term care distribution, the plan administrator of a defined contribution plan is permitted to rely on the issuer's statement in the long-term care premium statement that the coverage for the employee or the employee's spouse is for certified long-term care insurance.

Q. B-9: Is the plan administrator of a defined contribution plan permitted to rely on the information provided on the long-term care premium statement in making a qualified long-term care distribution?

A. B-9: Yes. The plan administrator of a defined contribution plan is permitted to rely on the information provided on the long-term care premium statement filed with the plan in making a qualified long-term care distribution to an employee. For example, in making a qualified long-term care distribution, the plan administrator of a defined contribution plan is permitted to rely on the statement made by the issuer as to the amount of the premiums owed for the coverage in the calendar year.

Q. B-10: What are the reporting requirements for a payor of a defined contribution

¹⁰For an explanation of the adjustment for inflation, see footnote 2 of this notice.

¹¹Certain section 72(t) permitted distributions are permitted to be repaid to an eligible retirement plan within this 3-year period. See, e.g., section 72(t)(2)(H)(v)(I) (qualified birth or adoption distributions), section 72(t)(2)(I)(vi) (emergency personal expense distributions), and section 72(t)(2)(K)(v) (domestic abuse victim distributions).

plan making a qualified long-term care distribution?

A. B-10: The payment of a qualified long-term care distribution to an employee must be reported by the payor on Form 1099-R, *Distributions from Pensions, Annuities, Retirement or Profit-Sharing Plans, IRAs, Insurance Contracts, etc.*

Q. B-11: If a defined contribution plan does not permit qualified long-term care distributions, may an employee treat an otherwise permissible distribution as a qualified long-term care distribution?

A. B-11: No. As stated in Q&A B-1, a defined contribution is not required to permit qualified long-term care distributions. If a defined contribution plan does not permit qualified long-term care distributions, then the exception to the 10% additional tax for qualified long-term care distributions will not apply to an employee's distribution from a defined contribution plan, even if that distribution is used to pay for long-term care insurance.¹²

IV. PAPERWORK REDUCTION ACT

The collection of information contained in this notice has been submitted to the Office of Management and Budget in accordance with the Paperwork Reduction Act (PRA) (44 U.S.C. 3507) under control number 1545-2317 for qualified long-term care distributions, control number 1545-NEW for the reporting requirements under Form 1099-LPS, and control number 1545-0119 for the reporting requirements under Form 1099-R. An agency may not conduct or sponsor, and a person is not required to respond to, a collection of information unless the collection of information displays a valid OMB control number. The collections of information in this notice are in Q&As A-1 through A-6 of this notice. The information collection requirements in Q&As A-1 through A-6 of

this notice will be submitted to OMB for review and approval in accordance with 5 CFR 1320.10. The collection of information in Q&As A-7 through A-11 of this notice will be addressed in connection with the Form 1099-LPS under the control number 1545-NEW.

Pursuant to section 72(t)(2)(N), the 10% additional tax on early distributions does not apply to qualified long-term care distributions described in section 401(a)(39). As required by section 401(a)(39)(E)(iii), Q&As A-1 through A-3 of this notice set forth the requirements of the Issuer Disclosure to be filed with the Secretary for the specific coverage product to which the long-term care premium statement relates. Q&A A-4 through A-6 of this notice provides guidance on the long-term care premium statement, including what an issuer must include in the long-term care premium statement and the procedures for filing a long-term care premium statement with an applicable defined contribution plan identified by the employee requesting qualified long-term care distributions.

Section 334 of the SECURE 2.0 Act is effective for distributions made after December 29, 2025. The IRS does not have all the data necessary for determining paperwork for qualified long-term care distributions. At this point, the IRS does not know how many defined contribution plans will permit these distributions or how many employees will request qualified long-term care distributions. Therefore, the paperwork burden is based on an estimated range of the number of employees who would apply for a qualified long-term care distribution from a defined contribution plan that would permit such distributions.

The collection of information in Q&As A-1 through A-6 is required to obtain a benefit. The likely respondent is an issuer of certified long-term care insurance that

will file a long-term care premium statement with an applicable defined contribution plan.

Estimated total annual reporting burden: 225 to 450 hours.

Estimated average annual burden per respondent: 3 hours.

Estimated number of respondents: 75 to 150 respondents.

Estimated frequency of responses: 1 per request for a long-term care premium statement from a policyholder to be filed with a defined contribution plan for the payment of qualified long-term care distributions.

Books or records relating to a collection of information must be retained as long as their contents may become material in the administration of any internal revenue law. Generally, tax returns and tax return information are confidential, as required by section 6103 of the Code.

V. EFFECT ON OTHER DOCUMENTS

Q&A J-1 of Notice 2024-02 is modified by extending the deadline for a plan sponsor of a defined contribution plan that is not a governmental plan, a section 403(b) plan maintained by a public school, or an applicable collectively bargained plan, to amend its eligible retirement plan to permit qualified long-term care distributions to December 31, 2027.

VI. DRAFTING INFORMATION

The principal authors of this notice are Pamela R. Kinard and Naomi Lehr of the Office of Associate Chief Counsel (Employee Benefits, Exempt Organizations, and Employment Taxes). For further information regarding this notice, please contact Ms. Naomi Lehr at (202) 317-4102, or Ms. Pamela Kinard at (202) 317-6000 (not toll-free numbers).

¹² Previous guidance has provided that individuals may treat certain other types of permissible distributions (for example, a hardship distribution) as a section 72(t) permitted distribution for purposes of the exception to the 10% additional tax if that individual otherwise meets the requirements of the section 72(t) permitted distribution even though the plan does not permit them. See, e.g., Notices 2024-02 and 2024-55, 2024-38 IRB 31. However, that same treatment is not available for qualified long-term care distributions because a plan that does not permit qualified long-term care distributions would not accept a long-term care premium statement from the issuer. Thus, the requirement under 401(a)(39)(E)(i) that a long-term care premium statement with respect to the employee be filed with the plan would not be met.

Definition of Terms

Revenue rulings and revenue procedures (hereinafter referred to as "rulings") that have an effect on previous rulings use the following defined terms to describe the effect:

Amplified describes a situation where no change is being made in a prior published position, but the prior position is being extended to apply to a variation of the fact situation set forth therein. Thus, if an earlier ruling held that a principle applied to A, and the new ruling holds that the same principle also applies to B, the earlier ruling is amplified. (Compare with *modified*, below).

Clarified is used in those instances where the language in a prior ruling is being made clear because the language has caused, or may cause, some confusion. It is not used where a position in a prior ruling is being changed.

Distinguished describes a situation where a ruling mentions a previously published ruling and points out an essential difference between them.

Modified is used where the substance of a previously published position is being changed. Thus, if a prior ruling held that a principle applied to A but not to B, and the

new ruling holds that it applies to both A and B, the prior ruling is modified because it corrects a published position. (Compare with *amplified* and *clarified*, above).

Obsoleted describes a previously published ruling that is not considered determinative with respect to future transactions. This term is most commonly used in a ruling that lists previously published rulings that are obsoleted because of changes in laws or regulations. A ruling may also be obsoleted because the substance has been included in regulations subsequently adopted.

Revoked describes situations where the position in the previously published ruling is not correct and the correct position is being stated in a new ruling.

Superseded describes a situation where the new ruling does nothing more than restate the substance and situation of a previously published ruling (or rulings). Thus, the term is used to republish under the 1986 Code and regulations the same position published under the 1939 Code and regulations. The term is also used when it is desired to republish in a single ruling a series of situations, names, etc., that were previously published over a period of time in separate rulings. If the

new ruling does more than restate the substance of a prior ruling, a combination of terms is used. For example, *modified* and *superseded* describes a situation where the substance of a previously published ruling is being changed in part and is continued without change in part and it is desired to restate the valid portion of the previously published ruling in a new ruling that is self contained. In this case, the previously published ruling is first modified and then, as modified, is superseded.

Supplemented is used in situations in which a list, such as a list of the names of countries, is published in a ruling and that list is expanded by adding further names in subsequent rulings. After the original ruling has been supplemented several times, a new ruling may be published that includes the list in the original ruling and the additions, and supersedes all prior rulings in the series.

Suspended is used in rare situations to show that the previous published rulings will not be applied pending some future action such as the issuance of new or amended regulations, the outcome of cases in litigation, or the outcome of a Service study.

Abbreviations

The following abbreviations in current use and formerly used will appear in material published in the Bulletin.

A—Individual.
Acq.—Acquiescence.
B—Individual.
BE—Beneficiary.
BK—Bank.
B.T.A.—Board of Tax Appeals.
C—Individual.
C.B.—Cumulative Bulletin.
CFR—Code of Federal Regulations.
CI—City.
COOP—Cooperative.
Ct.D.—Court Decision.
CY—County.
D—Decedent.
DC—Dummy Corporation.
DE—Donee.
Del. Order—Delegation Order.
DISC—Domestic International Sales Corporation.
DR—Donor.
E—Estate.
EE—Employee.
E.O.—Executive Order.
ER—Employer.

ERISA—Employee Retirement Income Security Act.
EX—Executor.
F—Fiduciary.
FC—Foreign Country.
FICA—Federal Insurance Contributions Act.
FISC—Foreign International Sales Company.
FPH—Foreign Personal Holding Company.
FR—Federal Register.
FUTA—Federal Unemployment Tax Act.
FX—Foreign corporation.
G.C.M.—Chief Counsel's Memorandum.
GE—Grantee.
GP—General Partner.
GR—Grantor.
IC—Insurance Company.
I.R.B.—Internal Revenue Bulletin.
LE—Lessee.
LP—Limited Partner.
LR—Lessor.
M—Minor.
Nonacq.—Nonacquiescence.
O—Organization.
P—Parent Corporation.
PHC—Personal Holding Company.
PO—Possession of the U.S.
PR—Partner.
PRS—Partnership.

PTE—Prohibited Transaction Exemption.
Pub. L.—Public Law.
REIT—Real Estate Investment Trust.
Rev. Proc.—Revenue Procedure.
Rev. Rul.—Revenue Ruling.
S—Subsidiary.
S.P.R.—Statement of Procedural Rules.
Stat.—Statutes at Large.
T—Target Corporation.
T.C.—Tax Court.
T.D.—Treasury Decision.
TFE—Transferee.
TFR—Transferor.
T.I.R.—Technical Information Release.
TP—Taxpayer.
TR—Trust.
TT—Trustee.
U.S.C.—United States Code.
X—Corporation.
Y—Corporation.
Z—Corporation.

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¹ A cumulative list of all revenue rulings, revenue procedures, Treasury decisions, etc., published in Internal Revenue Bulletins 2025–27 through 2025–52 is in Internal Revenue Bulletin 2024–52, dated December 22, 2024.

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¹ A cumulative list of all revenue rulings, revenue procedures, Treasury decisions, etc., published in Internal Revenue Bulletins 2025–27 through 2025–52 is in Internal Revenue Bulletin 2024–52, dated December 22, 2024.

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The Introduction at the beginning of this issue describes the purpose and content of this publication. The weekly Internal Revenue Bulletins are available at www.irs.gov/irb/.

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